

have an assise, for he has no other remedy by appeal. *Vide* 6 H. 7. 14 a. F. N. B. 4 b. 27 E. 3. 85. 10 Eliz. Dyer 273. pl. 35. (H).

Also it was resolved, that such return of disfranchisement ought to be certain, so that sufficient matter may appear to the Court to disfranchise the party; and *eo potius*, because the party cannot have answer to it, as is aforesaid (I).

Lastly, it was resolved, that for none of the causes contained in the said certificate, the said James Bagg by law ought to be removed; and therefore by the whole Court a writ was awarded to restore him to his franchise and freedom, and so he was.

[100 a] *Nota*, reader, in the argument of this case much was said to exhort citizens and burgesses to yield obedience and reverence to the chief magistrates in their cities and boroughs, because they derive their authority from the King, and *obedientia est legis essentia*, and therefore it appears before, how they shall be punished who commit any contempt against them: but the principal question of this case was, what acts were sufficient causes in law for the disfranchisement of any citizen or burgess, &c.

(H) Holt, C.J. in *Philips v. Bury*, Skinn. 487. [4 Mod. 124. 2 T. R. 346.] S. C. ascribes this opinion of Coke to a note in Dyer at the end of the case of *Dr. Coveney*; and, after observing that Coke cites the books of 8 Edw. 3. and 8 Ass. for the distinction, remarks, "But if there be an inspection into the book, there is no such difference in the book at all, the party is concluded in the one case, as well as in the other; therefore, there is an end of that opinion, for the foundation is quite fallen and taken away. But besides it is reasonable to suspect that case not to be law when that is impracticable which it is brought to prove. The head of a college cannot maintain an assise for his office of headship; he hath not such an estate as will maintain it. Therefore to give such an instance as is in *Coveney's case*, is to overthrow the authority of the case; the head of such a body cannot maintain an assise for his headship, for he hath no sole seisin; the whole body of the college hath an interest therein; he has not a title to a penny of the revenues in his own right, till by consent they are privately divided and distributed; and then too it is not the rector's money, it is Dr. Bury's money after division; it is a notion that cannot be maintained or supported by the rules of law; he is indeed the only visible person of the body, but has no single right." *Vid. Rex v. Bishop of Ely*, 2 T. R. 290. 1 Burn. E. L. 439. *et seq.*

(I) "It is certainly true, where an amotion is returned, the return must set out all the necessary facts precisely, to shew that the person is removed in a legal and proper manner, and for a legal cause. It is not sufficient to set out conclusions only; they must set the facts themselves out precisely, that the Court may be able to judge of the matter. And so it is also, as to the cause of amotion; this must be set out in the same manner that the Court may judge of it." Per Lord Mansfield, C.J. *Rex v. Mayor of Liverpool*, 2 Burr. 732. "But if the return be certain on the face of it, that is sufficient, and the Court cannot intend facts inconsistent with it for the purpose of making it bad." Per Buller, J. *Rex v. Lyme Regis*, Dougl. 159. "It is not enough to offer a matter, so that the party may be able to falsify it in an action; but the matter must be so alleged that the Court may be able to judge of it, and determine whether it be a sufficient cause or not." Per Holt, C.J. *Rex v. Mayor of Abingdon*, 2 Salk. 432. "I take it to be settled, that the same certainty is required now as before that statute (stat. Ann.), though I think at first it might have been otherwise determined." Per Lord Mansfield, C.J. *Rex v. Lyme Regis*, Dougl. 157.

A return to a *mandamus* may rely upon several independent causes. *Regina v. Mayor, &c. of Norwich*, 2 L. Raym. 1244. And if the return consists of several independent matters not inconsistent with each other, but part of them are good in law and part bad, the Court may quash the return as to such part only as is bad, and put the prosecutor to plead to, or traverse the rest. But where the causes returned are inconsistent, the whole is bad. *Rex v. Mayor of Cambridge*, 2 T. R. 456. *Rex v. Mayor of York*, 5 T. R. 66. *Vul. Com. Dig. Mandamus D. 5. Vin. Ab. Mandamus R. Bac. Ab. Mandamus I.*